



-1-

CRWP-6620-2026 (O&M)

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH**

(209)**CRWP-6620-2026 (O&M)**

Date of Decision:- 03.06.2026

MUKHWANT SINGH

.....Petitioner

Versus

STATE OF PUNJAB AND OTHERS

.....Respondents

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Mr. D.S. Sobti, Advocate, Mr. Saurav Bhatia, Advocate
Mr. Navdeep Khokhar, Advocate,
Mr. Sultan Singh Sangha, Advocate,
Mr. Bhavesh Puri, Advocate, Mr. J.S. Brar, Advocate and
Mr. Upasna Ganghi, Advocate for the petitioner.

Mr. Chanchal K. Singla, Sr. Advocate
Additional A.G., Punjab with
Mr. Rajat Bhardwaj, Additional A.G., Punjab.
Ms. Medha Dewan, Advocate, Ms. Kavita Joshi, Advocate
Mr. Sangam Garg, Advocate and Ms. Archana, Advocate
for respondents.

ALOK JAIN, J. (Oral)

1. The present petition has been filed *inter alia* praying for issuance of a writ of *habeas corpus* or any other appropriate writ/order or direction against respondents No.1 to 5, to forthwith produce the detenue- Jobanpreet Singh who is the son of the present petitioner. It is further prayed that appropriate direction be issued to declare the arrest of the detenue in FIR No.90 dated 30.05.2026, registered at Police Station Majitha, District Amritsar Rural as illegal and further prayed for preservation and production of all the video recordings, CCTV footage and

**CRWP-6620-2026 (O&M)**

other electronic evidence pertaining to the arrest, concealment and detention of the detainee.

2. In furtherance to the order dated 01.06.2026, learned State counsel has filed short reply along with Annexure R-1 by way of an affidavit of Mr. Kamalmeet Singh, PPS, Deputy Superintendent of Police, Sub-Division Majitha, Amritsar (Rural) on behalf of respondents No.1 to 5 to complete the pleadings. The same is taken on record.

3. Mr. Saurav Bhatia, learned filing counsel, who is present in Court, submits that the present petition was, in fact, filed on 01.06.2026, however, in the index and memo of parties, 24.05.2026 has been mentioned instead of 01.06.2026, which is merely a typographical error occasioned by oversight and not by any *mala fide* intention. Learned counsel further points out that the filing stamp clearly records that the petition was filed on 01.06.2026 and that his Vakalatnama/Power of Attorney is also dated 01.06.2026. It is further submitted that there is also typographical error regarding the age of the petitioner in the petition, though his Aadhaar Card has been placed on record which clearly demonstrate his correct age. Moreover, no objection regarding the said discrepancy was ever raised by the Registry at the time of filing. He submits that petitions seeking a writ of habeas corpus are often prepared and filed with urgency and, therefore, such an inadvertent error occurred. Nonetheless he tendered unconditional apology for the same and prays that the said date i.e. 24.05.2026 be read as 01.06.2026 and the correct age of petitioner be read as 65 instead of 36.

**CRWP-6620-2026 (O&M)**

4. Learned arguing counsel for the petitioner has opened his arguments by submitting that the present petition seeking issuance of a writ in the nature of habeas corpus is maintainable for the reason that the detention of the detenue is illegal from its very inception, as the constitutional mandate envisaged under Article 22(1) of the Constitution of India, read with Section 35 of the BNSS, 2023, and the settled principles of law laid down by the Hon'ble Apex Court in *Vihan Kumar v. State of Haryana (2025) 5 Supreme Court Cases 799*, have been blatantly violated.

5. It is further submitted that admittedly, as per the allegations levelled in the FIR, the date of the incident is 26.05.2026, however, the FIR came to be registered on 30.05.2026. The authorities have failed to demonstrate any compelling circumstances justifying the initial arrest without comply Section 35 of BNSS, 2023. Consequently, he has been kept in illegal detention throughout. Mere subsequent production of the detenue before a Court of competent jurisdiction to obtain the remand would not cure such initial non-compliance, and the actions of the authorities cannot be brushed under the carpet. The fundamental right to life and personal liberty of the detenue has been put in peril by the blatant violation of the rule of law.

6. Learned counsel for the petitioner heavily relies upon paragraphs 9 to 11 of the status report and submits that the FIR was registered at 8:47 p.m. on 30.05.2026. It is a specific assertion in the petition that the detenue was illegally detained at about 5:30 a.m. on 31.05.2026. Learned counsel further submits that after registration of the

**CRWP-6620-2026 (O&M)**

FIR at 8:47 p.m., and even after the change of the Investigating Officer, the authorities allegedly visited the place of occurrence, prepared a rough site plan, and conducted raids, however, no incriminating evidence was recovered. He further submits that neither any valid medical examination report nor any forensic report pertaining to the alleged incident dated 26.05.2026 had been received at that stage.

7. It is further submitted that, as per paragraph 10 of the status report, it has been stated that the Investigating Officer received secret information that the detainee, being a habitual offender, was making efforts to flee abroad in order to evade the process of law and that, if a raid was conducted, he could be apprehended.

8. Learned counsel for the petitioner submits that the said action of the authorities was in clear violation of Section 103 of the BNSS, 2023, as they allegedly entered the house illegally without following due process of law, much less obtaining any warrant. It is submitted that even if the version of the authorities is accepted to be correct that the Investigating Officer raided the house and apprehended the detainee from there, **even then**, there is no explanation as to why a notice under Section 35 of the BNSS, 2023 was not served upon him then and there. Further there is no explanation coming forth as to why the arrest of the detainee was not shown from his house itself, especially when the admitted position by the State is that the detainee was arrested at the police station in the morning of 31.05.2026.

**CRWP-6620-2026 (O&M)**

9. Learned counsel for the petitioner vehemently submitted that, in fact, the entire action of the authorities has been taken at the behest of the ruling political party. It is contended that after the declaration of results of the municipal elections, the present action has been initiated in blatant abuse of the process of law against the detainee who happened to be an election agent of Non Ruling Party from Ward No. 2 of Majitha, Amritsar. Learned counsel submits that due to the illegal arrest of detainee, the fundamental rights, including the right to life and personal liberty of the detainee, have been seriously jeopardized

10. Learned counsel for the petitioner vehemently relied upon the judgments passed by the Hon'ble Apex in case of *Vihaan Kumar Vs. State of Haryana and Anr.(2025) Supreme Court Cases 799* and *Prabir Purkayastha Vs. State (NCT of Delhi) 8 Supreme Court cases 254* to substantiate his arguments that the fundamental rights as envisaged under the Constitution of India have been violated and especially Article 22(1) of the Constitution of India, due to the reason that no compliance of the basic requirement of informing the grounds of arrest at the earliest to the person detained makes the arrest vitiated. It is further submitted that only to cover up the misdeeds, the authorities though illegally apprehended the detainee from his home in the wee hours of 31.05.2026, purposefully showed him to have been arrested in the police station. Learned counsel further submits that the authorities have admitted that they conducted raid in the residential premises of the petitioner but the said act is also in direct violation of Section 103 of BNSS, 2023, 2023 as the authorities were not empowered to

**CRWP-6620-2026 (O&M)**

raid the house without any search warrants. Learned counsel submits that a perusal of the FIR read with the alleged memo/grounds of arrest only record that one of the section invoked is non-bailable offence but this cannot be a ground to arrest as the sentence for such an offence was less than seven years and therefore, the dicta of Hon'ble Supreme Court in case of *Arnesh Kumar Vs. State of Bihar and Anr.*(2014) 8 Supreme Court Cases 273 and subsequently the judicial pronouncement in the case of *Satender Kumar Antil Vs. Central Bureau of Investigation and Anr.*(2022)10 Supreme Court cases 51 had to be followed strictly.

11. *Per contra*, Learned Senior counsel on behalf of the State has vehemently argued that the present petition is pre-meditated and orchestrated as a political spectacle. Learned Senior counsel submits that the detinue was arrested in FIR No. 90 dated 30.05.2026 in accordance with law and was produced before the learned Trial Court/Illaq Magistrate on the very same day. The Senior counsel for the State emphasized on the proceedings conducted on the said date and the order passed by the learned Trial Court to substantiate the contention that the petitioner, who was duly represented in the proceedings before the learned Trial Court/Illaq Magistrate, deliberately concealed this material fact while pursuing the present petition on 01.06.2026. It is further contended that there is no reference to the said fact in the pleadings as well. Learned Senior counsel for the State further submits that it is a settled proposition of law that once a detinue has been arrested in an FIR and produced before a Court of competent jurisdiction, a writ in the nature of habeas corpus is ordinarily

**CRWP-6620-2026 (O&M)**

not maintainable, as the detinue can no longer be said to be under illegal detention. Therefore, the petitioner is not entitled to seek issuance of a writ of habeas corpus in the present case.

12. Learned Senior counsel for the State further submits that it is pertinent to mention that a group of approximately 60–70 unknown persons allegedly gathered and attacked at the police station Majitha and forcibly brought the detinue before the media with an intent to create a political spectacle. Learned Senior State counsel maintains that it was only with considerable difficulty that the detinue was restored to lawful custody. Summarizing his submissions, learned Senior counsel for the State contends that the essential ingredients for issuance of a writ in the nature of habeas corpus are not satisfied in the present case. Learned counsel submits that it is always open to the petitioner to challenge any alleged illegality in the proceedings before the appropriate Court of competent jurisdiction. In support of his submissions, he relies upon the judgment passed by the Hon'ble Supreme Court in *State of Maharashtra and ors. Vs. Tasneem Rizwan Siddiquee* arising out of SLP (Crl.) No.2846 of 2018, *Rahul Modi and Anr. Etc. with Transfer petition (Crl.) No.35 of 2019, Serious Fraud Investigation Officer and Anr. Vs. Vivek Harivyasi and Ors.*, and *V. Senthil Balaji Vs. The State represented by Deputy Director and Ors.* 2024(3) SCC51

13. In addition, learned Senior counsel for the State has addressed the issue regarding the alleged non-compliance of Section 35 of the BNSS, 2023. Learned Senior counsel for the State submits that the said provision

**CRWP-6620-2026 (O&M)**

have been duly complied with and in fact the arrest was made considering the exceptional circumstances and in furtherance to the provisions available under Section 35 of BNSS, 2023. Reliance has been placed upon paragraph 8 of the judgment of the Hon'ble Supreme Court in *Arnesh Kumar v. State of Bihar and Anr.(supra)*, wherein it has been observed that once the police, upon due consideration, forms an opinion that arrest is necessary, the requirements under Section 35(3) of BNSS, 2023 may not operate in the manner sought to be canvassed by the petitioner.

14. Learned Senior counsel for the State has further argued that Section 35 of the BNSS, 2023 empowers the authorities to arrest a person, subject to fulfillment of certain conditions. Under the said provision, the police officer is required to record in writing the reasons for believing, on the basis of a complaint, information, or suspicion, that such individual has committed an offence. Furthermore, it is submitted that the authorities have duly complied with the said requirement and recorded their satisfaction that the arrest was necessary to prevent the person from committing any further offence, to facilitate proper investigation of the offence, to prevent the disappearance of evidence or tampering therewith. Additionally the arrest is intended to prevent the accused from making any inducement, threat, or promise to any person acquainted with the facts of the case so as to dissuade such person from disclosing those facts to the Court or to the police.

15. Learned Senior counsel for the State further submits that there was specific secret information received to the authorities that the detainee

**CRWP-6620-2026 (O&M)**

was likely to flee the country and the said secret information was found to be reasonably credible and consequently the detainee was arrested from his house on 31.05.2026 at about 9:15 a.m. and was apprehended strictly in accordance with law and after following due process. Learned Senior counsel for the State has emphatically relied upon paragraph 8 of the petition, wherein, the petitioner along with local political leaders themselves have admitted that they conducted a massive search at various police stations, which demonstrates their own conduct and intention.

16. Learned Senior Counsel for the State has summarized his arguments by submitting that the present petition is not maintainable from its very inception on account of suppression of material facts. Learned Senior counsel for the State submits that the detainee was arrested at 9:15 a.m. on 31.05.2026 and was produced before a Court of competent jurisdiction on the same day. The request for police remand was vehemently contested by the petitioner, yet two days' police remand was granted.

17. Learned Senior counsel for the State has reiterated the contentions, as recorded in paragraph 25 of the status report, and submits that neither the order dated 31.05.2026 nor the order dated 02.06.2026 has been challenged, hence once the petitioner is not challenging the remand order passed by the concerned Judicial Magistrate there arises no occasion to declare the arrest of the detainee illegal. It is vehemently argued that there is a distinction between "detention" and "custody" and both are two separate concepts. Admittedly, in the present case, when the petition was

**CRWP-6620-2026 (O&M)**

filed, the detainee was not under detention but was already in judicial custody, who had been produced before a Court of competent jurisdiction in accordance with law.

18. Learned Senior counsel for the State further submits that even if it is presumed that a copy of the order dated 31.05.2026 was not available to the petitioner at the time of filing the petition, the petitioner nevertheless concealed the factum of such order and failed to even mention it in the petition. It is argued that in a habeas corpus petition, this Court cannot examine whether every constitutional mandate relating to arrest has been complied with, as such issues are required to be adjudicated in appropriate proceedings before the competent forum. More importantly, the order dated 31.05.2026 has never been challenged.

19. Learned Senior counsel for the State further submits that after completion of police remand, the detainee was again produced before the learned trial Court on 02.06.2026 and was remanded to judicial custody. The petitioner or the detainee always has appropriate remedies available under law to seek necessary reliefs; however, the extraordinary writ jurisdiction of this Court cannot be invoked as a substitute for seeking bail.

20. Learned Senior counsel for the State has reiterated his contention that the detainee was never under illegal detention and that, even assuming that he remained in detention for a brief period, such detention was converted into lawful custody upon his production before the competent Court and subsequent passing of remand orders. Therefore, the legal parameters governing a writ of habeas corpus would undergo a



CRWP-6620-2026 (O&M)

material change, and a person who is in custody pursuant to a valid judicial order cannot ordinarily seek release by way of a writ of habeas corpus.

21. To rebut the contentions of the learned Senior counsel for the State, learned counsel for the petitioner submits that this Court was apprised on the first date of hearing with regard to the proceedings of 31.05.2026 but reiterates that since the entire act and conduct of the authorities right from the inception demonstrates that the authorities have acted in an absolutely illegal manner and the reasons recorded in compliance of Section 35 of BNSS, 2023 to arrest the petitioner without giving him notice, do not find mention in the grounds of arrest, wherein it has been only stated that non-bailable offence has been committed. The entire story of some secret information or the allegation that the detainee was preparing to flee from the country is unfounded and untenable. Furthermore the proceedings undertaken by the learned trial court on 31.05.2026, whereby the detainee was initially remanded to Police custody and subsequently the order dated 02.06.2026, whereby the detainee has been sent to judicial custody are not tenable for the reason that the very inception of the entire process was tainted by illegality. A subsequent act cannot cure the illegality committed.

22. Heard learned counsel for the parties at length for more than three hours, however, before proceeding in the matter, let the factual matrix be narrated in tabulated form. The following timeline has been submitted by the counsel for the parties.

Dates	Particulars of events
-------	-----------------------



CRWP-6620-2026 (O&M)

26.05.2026	The alleged date of occurrence as per the FIR in furtherance to which the was lodged.
30.05.2026 at 8:47 P.M.	The FIR No.90 of 30.05.2026 was lodged with regard to the incident which reads as under: <i>“Statement of Paramjit Singh alias Pamma, son of Sh. Ajaib Singh, resident of House No. 173, Ward No. 6, Dera Khunia Da, Majitha, Tehsil and District Amritsar, aged about 47 years, Mobile No. xxxx, who stated that I am a resident of the aforesaid address and a permanent resident thereof. I am a former Councilor I am a peace-loving and law-abiding citizen of India. That on 26-05-2026, at about 2:00/2:30 PM I, along with my friends Avtar Singh Laddu and Amritpal Singh, were standing at the Old Bus Stand, Majitha, where (1) Tejinderpal Singh resident of Majitha, (2) Sonu Boparai, (3) Harman Thathia, (4) Gurinder Singh alias Tinku resident of Bhoma, (5) Daljit Singh alias Gora resident of Manga Sarai, (6) Amandeep Singh resident of Khazana Gate, Amritsar, (7) Hardeep Singh resident of Verka, (8) Punjab Singh resident of Village Pandori</i>



CRWP-6620-2026 (O&M)

	<i>Waraich, District Amritsar, (9) Balbir Singh alias Bira resident of Sekhwan, District Gurdaspur, (10) Joban Singh resident of Abadi Varpal, Sohian Kalan, District Amritsar, (11) Harpreet Singh son of Dilbagh Singh resident of Angarh, (12) Harkawal Singh resident of Village Bhure Gill, District Amritsar, (13) Navjetan Singh resident of Ranjit Avenue, Amritsar, and along with them, 15/20 unknown persons were also present, who were armed with rifles and pistols, arrived in vehicles and upon arrival, they raised a lalkara (a loud challenge) hit me and said, "Catch him today, don't let him go alive." Upon this, accused Tejinderpal Singh hurled many abuses at me, targeting my mother and sister, and scratched my neck with his hand. He also gave me death threats. Accused Sonu Boparai tried to remove my turban, and during the scuffle, he forcibly snatched my gold chain and took it away. Accused Gurinder Singh @ Tink, Daljit Singh Gora, Amandeep Singh, Harman Thathian, and the other aforementioned persons also jointly engaged in a scuffle with me, hurled filthy abuses</i>
--	--



CRWP-6620-2026 (O&M)

	<i>at my mother and sisters, and gave death threats. Harkanwal Singh Bharo Gill engaged in a physical altercation with me. All these accused persons jointly assaulted me severely and gave death threats. The motive for the enmity is that I have an ongoing land dispute with Tejinderpal Singh. That the said accused persons have also jointly threatened me that if I file any application etc. against them with any senior police officials, they will have me and my family members killed, because they have links with major gangsters, and they also tell me that they have links with senior police officers. That the said accused persons are very dangerous individuals and are capable of extreme violence. A threat to my life and property, and that of my family members, has arisen from the said accused persons. That during the elections, due to the code of conduct being in force by the orders of the Hon'ble D.C. Sahib, the said individuals came from outside and committed hooliganism. As I was busy with the elections, I could not get my statement recorded. Today, I have appeared before you. The</i>
--	--

**CRWP-6620-2026 (O&M)**

	<i>strictest possible legal action should be taken against the said accused persons and a case be registered against them under the applicable offences. Statement has been dictated, read over and heard, and is correct.</i>
30.05.2026/31.05.2026 (NIGHT)	The Investigating Officer of the FIR is changed and the new Investigating Officer immediately takes action who inspected the place of occurrence prepared the rough sight plan and recorded the statement of witnesses.
31.05.2026 at 5.30 A.M. to 6.30 A.M i.e. in the wee hours	Ravangi by the Investigating officer to apprehend the dentene from his house (as per the police file raids were conducted at the house of 02 accused only out of 10 accused).
31.05.2026 at 9:15 A.M.	The police official apprehended and brought the dentene to the police Station and his arrest is shown to be around 9:30 A.M. and produced the dentene before the Judicial Magistrate at around 2:00 P.M.
31.05.2026	The Duty/Judicial Magistrate 1 st Class, Amritsar vide order of the even date had granted police remand of the dentene for two days.
01.06.2026	The present petition has been filed seeking writ of habeas corpus for



CRWP-6620-2026 (O&M)

	release of the detainee from the illegal custody of respondents. The Coordinate Bench of this Court issued notice of motion and called for the reply from the State.
02.06.2026	The detainee was again produced before the Duty/Judicial Magistrate 1 st Class, Amritsar and his police remand is changed to judicial custody till 16.06.2026
03.06.2026	State has filed the reply in the present petition

23. Before further proceeding it is imperative to reproduce Article 21 and 22(1) of Constitution of India, which read as under:

“21. Protection of life and personal liberty: No person shall be deprived of his life or personal liberty except according to procedure established by law.”

“22. Protection against arrest and detention in certain cases:

(1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice. xxxx”

24. In the case of **Prabir Purkayastha v. State (NCT of Delhi)**[2024(3) RCR(Criminal) 142], the Hon’ble Supreme Court has held that the person arrested has the fundamental and the statutory right to be informed about the grounds of arrest. The relevant extract of the same is reproduced as under:

**CRWP-6620-2026 (O&M)**

*“21. The Right to Life and Personal Liberty is the most sacrosanct fundamental right guaranteed under Articles 20, 21 and 22 of the Constitution of India. Any attempt to encroach upon this fundamental right has been frowned upon by this Court in a catena of decisions. In this regard, we may refer to following observations made by this Court in the case of **Roy V.D. v. State of Kerala (2000) 8 SCC 590:-***

"7. The life and liberty of an individual is so sacrosanct that it cannot be allowed to be interfered with except under the authority of law. It is a principle which has been recognised and applied in all civilised countries. In our Constitution Article 21 guarantees protection of life and personal liberty not only to citizens of India but also to aliens."

Thus, any attempt to violate such fundamental right, guaranteed by Articles, 20, 21 and 22 of the Constitution of India, would have to be dealt with strictly.

22. The right to be informed about the grounds of arrest flows from Article 22(1) of the Constitution of India and any infringement of this fundamental right would vitiate the process of arrest and remand. Mere fact that a charge sheet has been filed in the matter, would not validate the illegality and the unconstitutionality committed at the time of arresting the accused and the grant of initial police custody remand to the accused.

23. Learned ASG referred to the language of Article 22(5) of the Constitution of India and urged that even in a case of preventive detention, the Constitutional scheme does not require that the grounds on which the order of detention has

**CRWP-6620-2026 (O&M)**

been passed should be communicated to the detenue in writing. Ex facie, we are not impressed with the said submission.

24. The contention advanced by learned ASG based on the language of Article 22(5) of the Constitution of India persuaded us to delve deeper on the issue as to whether it is mandatory to communicate the grounds of arrest or detention in writing to the accused or the detenue, as the case may be, even though the constitutional mandate under Articles 22(1) and 22(5) of the Constitution of India does not explicitly require that the grounds should be communicated in writing.

*25. A Constitution Bench of this Court examined in detail the scheme of Article 22(5) of the Constitution of India in the case of **Harikisan v. State of Maharashtra and Others 1962 SCC OnLine SC 117** and held that the communication of the grounds of detention to the detenue in writing and in a language which he understands is imperative and essential to provide an opportunity to detenue of making an effective representation against the detention and in case, such communication is not made, the order of detention would stand vitiated as the guarantee under Article 22(5) of the Constitution was violated. The relevant para is extracted hereinbelow:*

" 7. clause (5) of Article 22 requires that the grounds of his detention should be made available to the detenue as soon as may be, and that the earliest opportunity of making a representation against the Order should also be afforded to him. In order that the detenue should have that opportunity, it is not sufficient that he has been physically delivered the means of knowledge with which to make his representation. In order that the detenue should be in a position effectively

**CRWP-6620-2026 (O&M)**

to make his representation against the Order, he should have knowledge of the grounds of detention, which are in the nature of the charge against him setting out the kinds of prejudicial acts which the authorities attribute to him. Communication, in this context, must, therefore, mean imparting to the detainee sufficient knowledge of all the grounds on which the Order of Detention is based. In this case the grounds are several, and are based on numerous speeches said to have been made by the appellant himself on different occasions and different dates. Naturally, therefore, any oral translation or explanation given by the police officer serving those on the detainee would not amount to communication, in this context, must mean bringing home to the detainee effective knowledge of the facts and circumstances on which the Order of Detention is based.

(emphasis supplied)

26. Further, this Court in the case of **Lallubhai Jogibhai Patel v. Union of India and Ors. (1981) 2 SCC 427**, laid down that the grounds of detention must be communicated to the detainee in writing in a language which he understands and if the grounds are only verbally explained, the constitutional mandate of Article 22(5) is infringed. The relevant para is extracted hereunder: -

"20. "Communicate" is a strong word. It means that sufficient knowledge of the basic facts constituting the "grounds" should be imparted effectively and fully to the detenu in writing in a language which he understands. The whole purpose of communicating the "ground" to the detenu is to enable him to make a purposeful and effective representation. If the "grounds" are only

**CRWP-6620-2026 (O&M)**

verbally explained to the detenu and nothing in writing is left with him, in a language which he understands, then that purpose is not served, and the constitutional mandate in Article 22(5) is infringed....."

(emphasis supplied)

*27. From a holistic reading of various judgments pertaining to the law of preventive detention including the Constitution Bench decision of this Court in Harikisan(supra), wherein, the provisions of Article 22(5) of the Constitution of India have been interpreted, **we find that it** has been the consistent view of this Court that the grounds on which the liberty of a citizen is curtailed, must be communicated in writing so as to enable him to seek remedial measures against the deprivation of liberty.*

28. Thus, there is no hesitation in the mind of this Court that the submission of learned ASG that in a case of preventive detention, the grounds of detention need not be provided to a detenue in writing is ex facie untenable in eyes of law.

29. The language used in Article 22(1) and Article 22(5) of the Constitution of India regarding the communication of the grounds is exactly the identical. Neither of the constitutional provisions require that the 'grounds' of "arrest" or "detention", as the case may be, must be communicated in writing. Thus, interpretation to this important facet of the fundamental right as made by the Constitution Bench while examining the scope of Article 22(5) of the Constitution of India would ipso facto apply to Article 22(1) of the Constitution of India insofar the requirement to communicate the grounds of arrest is concerned.

**CRWP-6620-2026 (O&M)**

30. Hence, **we have no hesitation** in reiterating that the requirement to communicate the grounds of arrest or the grounds of detention in writing to a person arrested in connection with an offence or a person placed under preventive detention as provided under Articles 22(1) and 22(5) of the Constitution of India is sacrosanct and cannot be breached under any situation. Noncompliance of this constitutional requirement and statutory mandate would lead to the custody or the detention being rendered illegal, as the case may be.

25. Subsequently, in the case of **Vihaan Kumar v. State of Haryana [2025(5) SCC 799]**, again emphasis have been laid to the necessity of informing the grounds of arrest at the earliest to the person so arrested, the relevant finding is reproduced as under:

“Therefore, as far as Article 22(1) is concerned, compliance can be made by communicating sufficient knowledge of the basic facts constituting the grounds of arrest to the person arrested. The grounds should be effectively and fully communicated to the arrestee in the manner in which he will fully understand the same. Therefore, it follows that the grounds of arrest must be informed in a language which the arrestee understands. That is how, in the case of Pankaj Bansal, this Court held that the mode of conveying the grounds of arrest must necessarily be meaningful so as to serve the intended purpose. However, under Article 22(1), there is no requirement of communicating the grounds of arrest in writing. Article 22(1) also incorporates the right of every person arrested to consult an advocate of his choice and the right to be defended by an advocate. If the grounds of arrest are not communicated to the arrestee, as soon as may be, he will not be able to effectively exercise the right to consult an

**CRWP-6620-2026 (O&M)**

advocate. This requirement incorporated in Article 22(1) also ensures that the grounds for arresting the person without a warrant exist. Once a person is arrested, his right to liberty under Article 21 is curtailed. When such an important fundamental right is curtailed, it is necessary that the person concerned must understand on what grounds he has been arrested. That is why the mode of conveying information of the grounds must be meaningful so as to serve the objects stated above.

14. Thus, the requirement of informing the person arrested of the grounds of arrest is not a formality but a mandatory constitutional requirement. Article 22 is included in Part III of the Constitution under the heading of Fundamental Rights. Thus, it is the fundamental right of every person arrested and detained in custody to be informed of the grounds of arrest as soon as possible. If the grounds of arrest are not informed as soon as may be after the arrest, it would amount to a violation of the fundamental right of the arrestee guaranteed under Article 22(1). It will also amount to depriving the arrestee of his liberty. The reason is that, as provided in Article 21, no person can be deprived of his liberty except in accordance with the procedure established by law. The procedure established by law also includes what is provided in Article 22(1). Therefore, when a person is arrested without a warrant, and the grounds of arrest are not informed to him, as soon as may be, after the arrest, it will amount to a violation of his fundamental right guaranteed under Article 21 as well. In a given case, if the mandate of Article 22 is not followed while arresting a person or after arresting a person, it will also violate fundamental right to liberty guaranteed under Article 21, and the arrest will be rendered illegal. On the failure to comply with the requirement of informing grounds of arrest as

**CRWP-6620-2026 (O&M)**

soon as may be after the arrest, the arrest is vitiated. Once the arrest is held to be vitiated, the person arrested cannot remain in custody even for a second.”

26. Therefore, Article 21 of the Constitution of India clearly protect every citizen that he shall not be deprived of his life and personal liberty **except according to procedure established by law** and as per Article 22(1) of the Constitution of India no person who is arrested shall be detained in custody **without being informed**.

27. Now coming to the issue of Section 35 of BNSS, 2023 it is imperative to reproduce the same as under:

“35. When police may arrest without warrant.

(1) Any police officer may without an order from a Magistrate and without a warrant, arrest any person-

(a) who commits, in the presence of a police officer, a cognizable offence; or

(b) against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years whether with or without fine, if the following conditions are satisfied, namely:-

(i) the police officer has reason to believe on the basis of such complaint, information, or suspicion that such person has committed the said offence;

(ii) the police officer is satisfied that such arrest is necessary-

(a) to prevent such person from committing any further offence; or

**CRWP-6620-2026 (O&M)**

(b) for proper investigation of the offence; or

(c) to prevent such person from causing the evidence of the offence to disappear or tampering with such evidence in any manner; or

(d) to prevent such person from making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the police officer; or

(e) as unless such person is arrested, his presence in the Court whenever required cannot be ensured, and the police officer shall record while making such arrest, his reasons in writing:

Provided that a police officer shall, in all cases where the arrest of a person is not required under the provisions of this sub-section, record the reasons in writing for not making the arrest; or

(c) against whom credible information has been received that he has committed a cognizable offence punishable with imprisonment for a term which may extend to more than seven years whether with or without fine or with death sentence and the police officer has reason to believe on the basis of that information that such person has committed the said offence; or

(d) who has been proclaimed as an offender either under this Sanhita or by order of the State Government; or

(e) in whose possession anything is found which may reasonably be suspected to be stolen property and who may reasonably be suspected of having committed an offence with reference to such thing; or

(f) who obstructs a police officer while in the execution of his duty, or who has escaped, or attempts to escape, from lawful custody; or

**CRWP-6620-2026 (O&M)**

(g) who is reasonably suspected of being a deserter from any of the Armed Forces of the Union; or

(h) who has been concerned in, or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, of his having been concerned in, any act committed at any place out of India which, if committed in India, would have been punishable as an offence, and for which he is, under any law relating to extradition, or otherwise, liable to be apprehended or detained in custody in India; or

(i) who, being a released convict, commits a breach of any rule made under sub-section (5) of section 394; or

(j) for whose arrest any requisition, whether written or oral, has been received from another police officer, provided that the requisition specifies the person to be arrested and the offence or other cause for which the arrest is to be made and it appears therefrom that the person might lawfully be arrested without a warrant by the officer who issued the requisition.

(2) Subject to the provisions of section 39, no person concerned in a non-cognizable offence or against whom a complaint has been made or credible information has been received or reasonable suspicion exists of his having so concerned, shall be arrested except under a warrant or order of a Magistrate.

(3) he police officer shall, in all cases where the arrest of a person is not required under sub-section (1) issue a notice directing the person against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence, to appear before him or at such other place as may be specified in the notice.

**CRWP-6620-2026 (O&M)**

(4) Where such a notice is issued to any person, it shall be the duty of that person to comply with the terms of the notice.

(5) Where such person complies and continues to comply with the notice, he shall not be arrested in respect of the offence referred to in the notice unless, for reasons to be recorded, the police officer is of the opinion that he ought to be arrested.

(6) Where such person, at any time, fails to comply with the terms of the notice or is unwilling to identify himself, the police officer may, subject to such orders as may have been passed by a competent Court in this behalf, arrest him for the offence mentioned in the notice.

(7) No arrest shall be made without prior permission of an officer not below the rank of Deputy Superintendent of Police in case of an offence which is punishable for imprisonment of less than three years and such person is infirm or is above sixty years of age.”

28. The Hon'ble Apex Court in a landmark judgment in ***Mihir Rajesh Shah Vs. State of Maharashtra and Anr. (2025) Livelaw (SC) 1066*** has further held that furnishing grounds of arrest to the accused is necessary and the citizen must be informed about the same. The citizen is entitled to a information as to why his freedom is being curtailed and also have the opportunity to engage a counsel to avail his remedy. The relevant paragraphs reads as under:

“54. In view of the above, we hold with regard to the second issue that non supply of grounds of arrest in writing to the arrestee prior to or immediately after arrest would not vitiate such arrest on the grounds of non-compliance with the provisions of Section 50 of the CrPC 1973 (now Section 47 of BNSS 2023) provided the said grounds are supplied in writing within a reasonable time and in any case two hours prior to

**CRWP-6620-2026 (O&M)**

the production of the arrestee before the magistrate for remand proceedings.

55. It goes without saying that if the abovesaid schedule for supplying the grounds of arrest in writing is not adhered to, the arrest will be rendered illegal entitling the release of the arrestee. On such release, an application for remand or custody, if required, will be moved along with the reasons and necessity for the same, after the supply of the grounds of arrest in writing setting forth the explanation for non-supply thereof within the above stipulated schedule. On receipt of such an application, the magistrate shall decide the same expeditiously and preferably within a week of submission thereof by adhering to the principles of natural justice.

56. In conclusion, it is held that:

- i) The constitutional mandate of informing the arrestee the grounds of arrest is mandatory in all offences under all statutes including offences under IPC 1860 (now BNS 2023);*
- ii) The grounds of arrest must be communicated in writing to the arrestee in the language he/she understands;*
- iii) In case(s) where, the arresting officer/person is unable to communicate the grounds of arrest in writing on or soon after arrest, it be so done orally. The said grounds be communicated in writing within a reasonable time and in any case at least two hours prior to production of the arrestee for remand proceedings before the magistrate.*
- iv) In case of non-compliance of the above, the arrest and subsequent remand would be rendered illegal and the person will be at liberty to be set free.”*

29. In another judgment passed by the Hon'ble Supreme Court in the case of ***Arnesh Kumar v. State of Bihar [2014 AIR (SCW) 3930]***, while concluding, has observed that informing the grounds of the arrest is

**CRWP-6620-2026 (O&M)**

not only mandatory but also is a fundamental right of the person so arrested. The same may be read as under:

“Conclusions

21. Therefore, we conclude:

a) The requirement of informing a person arrested of grounds of arrest is a mandatory requirement of Article 22(1);

b) The information of the grounds of arrest must be provided to the arrested person in such a manner that sufficient knowledge of the basic facts constituting the grounds is imparted and communicated to the arrested person effectively in the language which he understands. The mode and method of communication must be such that the object of the constitutional safeguard is achieved;

c) When arrested accused alleges non-compliance with the requirements of Article 22(1), the burden will always be on the Investigating Officer/Agency to prove compliance with the requirements of Article 22(1);

d) Non-compliance with Article 22(1) will be a violation of the fundamental rights of the accused guaranteed by the said Article. Moreover, it will amount to a violation of the right to personal liberty guaranteed by Article 21 of the Constitution. Therefore, non-compliance with the requirements of Article 22(1) vitiates the arrest of the accused. Hence, further orders passed by a criminal court of remand are also vitiated. Needless to add that it will not vitiate the investigation, charge sheet and trial. But, at the same time, filing of chargesheet will not validate a breach of constitutional mandate under Article 22(1);

e) When an arrested person is produced before a Judicial Magistrate for remand, it is the duty of the Magistrate to ascertain whether compliance with Article 22(1) and other mandatory safeguards has been made; and

f) When a violation of Article 22(1) is established, it is the duty of the court to forthwith order the release of the accused. That will be a ground to grant bail even if statutory

**CRWP-6620-2026 (O&M)**

restrictions on the grant of bail exist. The statutory restrictions do not affect the power of the court to grant bail when the violation of Articles 21 and 22 of the Constitution is established.”

30. Subsequently, the Hon’ble Supreme Court again in the judgment ***Satender Kumar Antil v. Central Bureau of Investigation [2022 AIR Supreme Court 3386]*** has issued the following directions:

“73. In conclusion, we would like to issue certain directions. These directions are meant for the investigating agencies and also for the courts. Accordingly, we deem it appropriate to issue the following directions, which may be subject to State amendments.:

(a) The Government of India may consider the introduction of a separate enactment in the nature of a Bail Act so as to streamline the grant of bails.

(b) The investigating agencies and their officers are duty-bound to comply with the mandate of Section 41 and 41A of the Code and the directions issued by this Court in Arnesh Kumar (supra). Any dereliction on their part has to be brought to the notice of the higher authorities by the court followed by appropriate action.

(c) The courts will have to satisfy themselves on the compliance of Section 41 and 41A of the Code. Any non-compliance would entitle the accused for grant of bail.

(d) All the State Governments and the Union Territories are directed to facilitate standing orders for the procedure to be followed under Section 41 and 41A of the Code while taking note of the order of the High Court of Delhi dated 07.02.2018 in Writ Petition (C) No. 7608 of 2018 and the standing order issued by the Delhi Police i.e. Standing Order No. 109 of 2020, to comply with the mandate of Section 41A of the Code.

(e) There need not be any insistence of a bail application while considering the application under Section 88, 170, 204 and 209 of the Code.

**CRWP-6620-2026 (O&M)**

(f) There needs to be a strict compliance of the mandate laid down in the judgment of this court in Siddharth (supra).

(g) The State and Central Governments will have to comply with the directions issued by this Court from time to time with respect to constitution of special courts. The High Court in consultation with the State Governments will have to undertake an exercise on the need for the special courts. The vacancies in the position of Presiding Officers of the special courts will have to be filled up expeditiously.

(h) The High Courts are directed to undertake the exercise of finding out the undertrial prisoners who are not able to comply with the bail conditions. After doing so, appropriate action will have to be taken in light of Section 440 of the Code, facilitating the release.

(i) While insisting upon sureties the mandate of Section 440 of the Code has to be kept in mind.

(j) An exercise will have to be done in a similar manner to comply with the mandate of Section 436A of the Code both at the district judiciary level and the High Court as earlier directed by this Court in Bhim Singh (supra), followed by appropriate orders.

(k) Bail applications ought to be disposed of within a period of two weeks except if the provisions mandate otherwise, with the exception being an intervening application. Applications for anticipatory bail are expected to be disposed of within a period of six weeks with the exception of any intervening application.

(l) All State Governments, Union Territories and High Courts are directed to file affidavits/ status reports within a period of four months.”

31. The moot contention being raised by the parties is that the State has acted in contravention to the provisions of Section 35 of BNSS, 2023 and the law laid down by the Hon’ble Apex Court and the State is arguing that it has powers to arrest a person without giving him prior notice in certain cases and they have exercised their power legally. This issue

**CRWP-6620-2026 (O&M)**

already stands adjudicated by the Hon'ble Apex Court in the case of ***Prabir Purkayastha Vs. State (NCT of Delhi) 8 Supreme Court cases 254*** wherein, the Hon'ble Apex Court has held as under:

"38. The interpretation given by the learned Single Judge that the grounds of arrest were conveyed to the accused in writing vide the arrest memo is unacceptable on the face of the record because the arrest memo does not indicate the grounds of arrest being incorporated in the said document. Column No. 9 of the arrest memo(Annexure P-7) which is being reproduced hereinbelow simply sets out the 'reasons for arrest' which are formal in nature and can be generally attributed to any person arrested on accusation of an offence whereas the 'grounds of arrest' would be personal in nature and specific to the person arrested.

"9. Reason for arrest

- a. Prevent accused person from committing any further offence.*
- b. For proper investigation of the offence.*
- c. To prevent the accused person from causing the evidence of the offence to disappear or tempering with such evidence in any manner.*
- d. To prevent such person from making any inducement threat or promise to any person acquainted the facts of the case so as to dissuade him from disclosing such facts to the Court or to the Police officer.*
- e. As unless such person is arrested, his presence in the Court whenever required cannot be ensured."*

41. We may, however, briefly mention that the grounds of arrest as conveyed to the Advocate are more or less a narration of facts picked up from the FIR which in itself does not indicate any particular incident or event which gave rise to

**CRWP-6620-2026 (O&M)**

the alleged offences. However, the law is well settled that the FIR is not an encyclopaedia and is registered just to set the process of criminal justice in motion. The Investigating Officer has the power to investigate the matter and collect all relevant material which would form the basis of filing of charge sheet in the Court concerned.

48. We have carefully perused the arrest memo(Annexure P-7) and find that the same nowhere conveys the grounds on which the accused was being arrested. The arrest memo is simply a proforma indicating the formal 'reasons' for which the accused was being arrested. 49. It may be reiterated at the cost of repetition that there is a significant difference in the phrase 'reasons for arrest' and 'grounds of arrest'. The 'reasons for arrest' as indicated in the arrest memo are purely formal parameters, viz., to prevent the accused person from committing any further offence; for proper investigation of the offence; to prevent the accused person from causing the evidence of the offence to disappear or tempering with such evidence in any manner; to prevent the arrested person for making inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the Investigating Officer. These reasons would commonly apply to any person arrested on charge of a crime whereas the 'grounds of arrest' would be required to contain all such details in hand of the Investigating Officer which necessitated the arrest of the accused. Simultaneously, the grounds of arrest informed in writing must convey to the arrested accused all basic facts on which he was being arrested so as to provide him an opportunity of defending himself against custodial remand and to seek bail. Thus, the 'grounds of arrest' would invariably be

**CRWP-6620-2026 (O&M)**

personal to the accused and cannot be equated with the 'reasons of arrest' which are general in nature.

51. As a result, the appellant is entitled to a direction for release from custody by applying the ratio of the judgment rendered by this Court in the case of Pankaj Bansal(supra)."

32. Considering the fact that the State is taking stand that the authorities had taken a conscious decision to arrest the detainee without giving him a notice and had record the reason thereof, however, the counsel for the petitioner is taking a stand that the reason do not fall within the parameters under which they could have exercised the power of arrest which is a colourful exercise of power, only to defeat the fundamental right of the detainee.

Further, in the judgment passed by the Hon'le Apex Court in the case of *Arnesh Kumar v. State of Bihar [2014 AIR (SCW) 3930]*, it has been specifically held that wherever there is punishment for an alleged offence for period of less than seven years, the authorities is duty bound to issue a notice which has not been issued in the present case.

33. The issue with regard to the argument raised by the State that the detainee has been taken on remand on 31.05.2026, then considering the judgment of the Hon'ble Apex Court in the case of *Pankaj Bansal Vs. Union of India [(2024) 7 Supreme Court Cases 576]* when the arrest of the detainee was not in compliance of the provision of Section 35 of BNSS, 2023 then the subsequent remand order will not cure the illegality committed by the police authorities and does not *ipso facto* validate search detention. The Hon'ble Apex Court though while dealing with provision of

**CRWP-6620-2026 (O&M)**

Section 19(1) of The Prevention of Money Laundering Act (PMLA), 2002, has clearly held the above but the tenor of the order applies to the present case as well and since the provision of Section 35 of BNSS, 2023 have been violated, therefore, the subsequent remand order will be of no consequence, in light of the fact that the arrest of the detainee was not lawful since its inception.

34. In the present case after going through the contents of the FIR and summarily, the act and conduct of the law enforcement agency itself demonstrates that they have failed to adhere to the provisions of law inasmuch as the authorities have not been able to show that what was the recovery to be effected from the detainee and more so in the absence of any medical opinion or any substantial piece of cogent evidence surfaced or available with the Investigating Officer that the immediate arrest of the detainee was warranted. The provisions of BNSS, 2023 have not been followed and Article 21 and 22(1) of Constitution of India have been violated.

35. Considering all the above, it is apparent that the detention of the detainee was illegal at the very first instance and the statutory provisions had not been complied with. Accordingly, the detainee deserves to be released forthwith. However, the State is at liberty to proceed in the matter after following due process of law and compliance of the provisions therein without violating the fundamental rights of the detainee.

36. In light of the above discussions and the settled principle of law and to maintain balance of equity, in the opinion of this Court, this



CRWP-6620-2026 (O&M)

petition deserves to be disposed of with the direction that the detenue be released from the custody, as his initial detention is illegal being in contravention to the rights and protection envisaged under Article 21 and 22(1) of the Constitution of India read with the relevant provisions of BNSS, 2023, and the judicial pronouncements passed by the Hon’ble Supreme Court of India.

37. Pending application(s), if any, stands disposed of.

June 03, 2026

manju

Whether speaking/reasoned:-

Yes/No

Whether Reportable:-

Yes/No

**(ALOK JAIN)
JUDGE**